

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into on 12 March 2025 at Chennai by and between Shivneri Engineering Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at 354, Whitefield, Hyderabad, Telangana (the "Client"), and Nilgiri Software Private Limited, having its registered office at 322, Hinjewadi Phase 2, Mumbai, Maharashtra (the "Service Provider").

WHEREAS the Client wishes to engage the Service Provider from time to time to provide certain services, and the parties wish to set out the general terms and conditions that will govern all such engagements. The specific services, deliverables, timelines and fees for each engagement shall be set out in one or more Statements of Work executed under this Agreement.

1. Definitions

"Statement of Work" or "SOW" means a document executed by both parties that references this Agreement and describes specific services. "Confidential Information" means all non-public information disclosed by either party. "Deliverables" means the work product specified in an SOW.

2. Scope and Order of Precedence

This Agreement does not by itself oblige the Client to purchase any services. Each SOW shall be governed by this Agreement. In case of conflict, the terms of this Agreement shall prevail over any SOW unless the SOW expressly states otherwise with reference to the specific clause being varied.

3. Term and Termination

This Agreement shall remain in force for a period of 3 years from the Effective Date and shall automatically renew for successive one-year terms unless either party gives 60 days' written notice. Either party may terminate this Agreement for material breach that remains uncured for thirty (30) days after written notice. Termination of this Agreement shall not affect any SOW then in progress unless the parties agree otherwise.

4. Fees, Invoicing and Payment

Fees shall be as specified in each SOW. The Service Provider shall invoice monthly in arrears and the Client shall pay undisputed amounts within 45 days of receipt of a valid GST-compliant invoice. Applicable taxes shall be borne as per law. Disputed amounts shall be notified within fifteen days.

5. Confidentiality

Each party shall protect the other party's Confidential Information using at least the same degree of care it uses for its own information, and in no event less than reasonable care. These obligations survive termination for five (5) years.

6. Intellectual Property

All pre-existing intellectual property remains with its owner. Upon full payment, Deliverables created specifically for the Client under an SOW shall vest in the Client, subject to the Service Provider's retained rights in its tools, frameworks and know-how.

7. Warranties

The Service Provider warrants that the services shall be performed in a professional and workmanlike manner by qualified personnel and in accordance with applicable law.

8. Indemnification

Each party shall indemnify the other against third-party claims arising from its gross negligence, wilful misconduct, or infringement of third-party intellectual property rights.

9. Limitation of Liability

Except for breach of confidentiality and indemnity obligations, neither party's aggregate liability shall exceed the fees paid under the relevant SOW in the 12 months preceding the claim. Neither party shall be liable for indirect or consequential losses.

10. Data Protection

Where the Service Provider processes personal data on behalf of the Client, it shall act as a Data Processor and comply with the Digital Personal Data Protection Act, 2023 and the rules thereunder, and shall implement reasonable security safeguards.

11. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of India. Disputes shall be referred to arbitration by a sole arbitrator under the Arbitration and Conciliation Act, 1996, seated at Chennai. Courts at Chennai shall have exclusive jurisdiction.

12. General

This Agreement, together with all SOWs, constitutes the entire agreement between the parties. Amendments must be in writing. Neither party may assign this Agreement without prior written consent, except to an affiliate.

IN WITNESS WHEREOF, the parties have executed this document through their authorised representatives.

For Shivneri Engineering	For Nilgiri Software
Name: Vikram Rathore	Name: Rahul Verma
Designation: Director	Designation: Authorised Signatory
Date: 23 September 2024	Date: 22 June 2024